MARRY MUBAIWA
versus
MAGISTRATE FERESI CHAKANYUKA N.O
and
THE PROSECUTOR GENERAL

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 26 January & 29 April 2026.

Court Application

R.E Sitotombe, for the applicant
C Muchemwa, for the 2nd respondent

MANZUNZU J

INTRODUCTION

(1) This is a court application for review in terms of sections 26, 27 and 29 of the High Court Act, [*Chapter 7:06*] as read with rule 62 of the High Court Rules, 2021. The applicant seeks the following relief:

1. "The first respondent's ruling dated 22nd November 2024 dismissing the application for the permanent stay of applicant's prosecution under Case No. ACC95/19 be and is hereby set aside.
2. That the matter be and is hereby remitted back to the first respondent to fully comply with the provisions of section 167A of the Criminal Procedure and Evidence Act by conducting an investigation and thereafter considering the application in the normal course.
3. That pending the investigation and rehearing and final determination of the application, the main trial be stayed."

BACKGROUND

(2) The applicant is a female adult, who is also an accused in case number ACC95/19, where she is charged with attempted murder. The trial has commenced and the case is partly heard.

(3) The 1st respondent is a Regional Magistrate based at Harare Magistrates Court and is the presiding officer in the case.

(4) The 2nd respondent is the Prosecutor General cited in her official capacity.

(5) The applicant was arrested on 14 December 2019 for attempted murder.

(6) On 8 November 2024, the applicant made an application in terms of section 167A of the Criminal Procedure and Evidence Act [*Chapter 9:07*] (CPEA) for a permanent stay of prosecution. The application is well detailed giving a full historical perspective of the remand life of the case. The applicant also referred the court to take note of the history from the court record.

(7) The application was opposed by the 2nd respondent.

(8) The application was premised on the ground that there had been an inordinate and unreasonable delay in the completion of the criminal proceedings against her.

(9) On 22 November 2024, in a written ruling, the 1st respondent dismissed the application for permanent stay of proceedings.

(10) The court found that the delay in the finalisation of the matter was not due to the State, but rather the trial failed to commence at the instance of the applicant.

(11) The applicant alleges that the 1st respondent committed a gross irregularity by deciding the application for permanent stay of prosecution without conducting the mandatory investigation required in terms of section 167A of the CP& E Act. The applicant thus makes an application for review in terms of section 26, 27 and 29 of the High Court Act as read with rule 62 of the High Court Rules based on the following grounds for review:

a) The first respondent committed a gross irregularity when she determined the application for a permanent stay of prosecution without conducting the necessary investigation envisioned under section 167A of the Criminal Procedure and Evidence Act [*Chapter 09:07*].
b) The first respondent further committed a gross irregularity when she found that only unreasonable delays "mainly or solely attributable to the State" can properly find an application for permanent stay of prosecution.
c) The first respondent further committed a gross irregularity when she limited the delays only to the period after the commencement of the trial.
d) The first respondent further committed a gross irregularity in blaming the applicant for the delay when she is not responsible for the medical conditions,
e) The decision of the first respondent is outrageous in its defiance of logic or accepted legal principles that no court, having applied its mind to the provision of

section 167A of the Criminal Procedure and Evidence Act would have arrived at such a decision for the reasons it gave.

(12) After giving notice to the 2nd respondent, at the hearing, the applicant raised a point in *limine* one based on the doctrine of peremption. The applicant alleges that in a similar application for permanent stay of prosecution in terms of section 167A of the CPEA, under case number HCHACC 326/23 before KWENDA J, the 2nd Respondent conceded that section 167A of the Criminal Procedure and Evidence Act requires an investigative inquiry to be conducted and is currently participating in such an inquiry conducted by the Honourable Justice Kwenda. The applicant states the 1st respondent cannot concede, in that case, that an investigative enquiry is mandatory in terms of section 167A of the CPEA, participate in the investigative enquiry under case number HCACC 326/23 by calling witnesses including medical doctors and then argue against it in these proceedings.

(13) The applicant argues that the 2nd respondent is barred from taking a contrary position in these proceedings. The applicant further argues that a litigant cannot take two positions that contradict each other.

(14) The 2nd respondent alleges that the proceedings before the Honourable KWENDA J are different from those that are before this court, therefore the preliminary point raised by the applicant of peremption has no merit.

(15) As to the merits, the 2nd respondent said there was no hard and fast rule on how the court should conduct an investigation inquiry. Given that the parties presented their cases through submissions, a consideration of which by the court amounts to investigation.

THE LAW

The doctrine of peremption

(16) The court in *United Harvest (Pvt) Ltd* v *Kewada N.O &Anor* SC51/23 defined the doctrine of peremption. It stated that:

> "According to the Collins dictionary, to acquiesce is "to assent tacitly; submit or comply silently or without protest; agree; consent; accede; concur; capitulate." Thus, the acceptance of something without protest is acquiescence. In terms of the common law doctrine of peremption, a party who acquiesces in a judgment cannot subsequently seek to challenge the judgment to which he has so acquiesce"

Further the court also took note of the statement made in *Clarke* v *Bethal Co-operative Society* 1911 TPD 1152 at 1158 is apt:

> "The authorities are all agreed on one point, namely, that there must be either an express or an implied agreement between the parties not to pursue an appeal. If there is no express agreement, the appellant must have so conducted himself that his acts, when fairly construed, necessarily lead the court to the conclusion that he has impliedly agreed with the other side not to prosecute his appeal. That is the law as it is laid down in the Code (7.52.5), and by Voet (49.1.2)."

(17) The court in *Erarah Investment (Pvt) Ltd* v *Dove Wings Investment & Ors* HH 10-26 stated that:

> "On the other hand, the doctrine of peremption is a doctrine of finality. Its purpose is to prevent a litigant from blowing hot and cold, from taking the benefit of a judgment or conducting itself in a way that suggests acceptance, only to later seek to undermine it. The test, as set out in Dabner, is stringent: the conduct must be "unequivocal and must be inconsistent with any intention to appeal" (or, in this context, to apply for rescission)."

(18) In *Dhliwayo* v *Warman Zimbabwe (Pvt) Ltd & Ors* HB 12-22 the court looked at the doctrine of peremption. The court stated that:

> "According to the common law doctrine of peremption, a party who acquiesces to a judgment cannot subsequently seek to challenge the judgment to which he has acquiesced. This doctrine is founded on the logic that no person may be allowed to opportunistically endorse two conflicting positions or to both approbate and reprobate, or to blow hot and cold. It may even be said that a party will not be allowed to have her cake and eat it too. Although the doctrine has its origin in appeals, the doctrine and its principles equally in the case of rescission. See: *Zuma v Secretary of the Judicial Commission of Inquiry into Allegations of State Capture, Corruption and Fraud in the Public Sector Including Organs of State and Others [2021] ZACC 28[1] para. 101."*

The court in *Dhliwayo supra* also noted that:

> "The doctrine of peremption was enunciated in *Hlatshwayo v Mare and Deas* 1912 AD 242 where Lord De Villiers held that 'where a man has two courses of action open to him and he unequivocally takes one he cannot afterwards turn back and take the other.' Similarly, in *Dabner v South African Railways and Harbours* 1920 AD 583 @ 594 Innes CJ stated:
>
> The rule with regard to peremption is well settled and has been enunciated on several occasions by this Court. If the conduct of an unsuccessful litigant is such as to point indubitably and necessarily to the conclusion that he does not intend to attack the judgment, then he is held to have acquiesced in it. But the conduct relied upon must be unequivocal and must be inconsistent with Sentraale Ko-Operatiewe Graan any intention to appeal. And the onus of establishing that position is upon the party alleging it. In doubtful cases acquiescence, like waiver, must be held non-proven."

(19) From the authorities cited above, the common law doctrine of peremption states that a party who acquiesces in a judgment cannot subsequently seek to challenge the judgment to which he has so acquiesced. In other words a party cannot take two conflicting positions.The

agreement can either be expressed or implied. In the present matter the applicant raises a preliminary point of peremption. The applicant alleges that in a similar application for permanent stay of prosecution in terms of s167A of CPEA under case number HCHACC326/23, the 2nd respondent conceded that s167A of CPEA requires an investigative inquiry to be conducted. Thus, the respondent cannot contradict that in the present matter. The parties in the present matter and HCHACC326/23 are the same parties. However, the legal basis or the facts that are required to prove this present application and HCHACC326/26 are different, the matters are not the same. The present application is a review, and it challenges the process which the 1st respondent used to arrive at the decision. While HCHACC326/23 is an appeal and it challenges the merits of the decision. In any event the full details and circumstances of the matter before KWENDA J were not disclosed to assist the court in drawing a comparison.

I therefore find no merit in the preliminary point raised by the applicant and is hereby dismissed.

MERITS

Whether or not the application for review should be granted.

The Law

(20) Sections 26, 27,28 and 29 of the High Court Act [*Chapter 7:06*] lay down the power of the High Court to review decisions of inferior courts. Section 26 states that the High Court has power to review proceedings from inferior courts while s27 provides the grounds for review. They state that:

> **"26 Power to review proceedings and decisions**
>
> Subject to this Act and any other law, the High Court shall have power, jurisdiction and authority to review all proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities within Zimbabwe.
>
> **27 Grounds for review**
>
> (1) Subject to this Act and any other law, the grounds on which any proceedings or decision may be brought on review before the High Court shall be—
>
> (a) absence of jurisdiction on the part of the court, tribunal or authority concerned;
>
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be;

> (c) gross irregularity in the proceedings or the decision.
>
> (2) Nothing in subsection (1) shall affect any other law relating to the review of proceedings or decisions of inferior courts, tribunals or authorities."

(21) It is trite that a superior court will only interfere in unterminated proceedings of a lower court in exceptional circumstances of gross irregularity or where not to do so may result in grave injustice. In *Attorney-General* v *Makamba* 2005 (2) ZLR 54 (S) at 64 C-E MALABA JA, as he then was, had this to say; . "The general rule is that a superior court should intervene in uncompleted proceedings of the lower courts only in exceptional circumstances of proven gross irregularity vitiating the proceedings and giving rise to a miscarriage of justice which cannot be redressed by any other means or where the interlocutory decision is clearly wrong as to seriously prejudice the rights of the litigant." The learned Judge cited with approval the words of STEYN CJ in *Ishmael & Ors* v *Additional Magistrate Wynberg & Anor* 1963(1) SA 1(A) at p 4 that:

> "It is not every failure of justice which would amount to a gross irregularity justifying intervention before completion … . A superior court should be slow to intervene in unterminated proceedings in a court below and should generally speaking confine the exercise of its powers to "rare cases where grave injustice must otherwise result or where justice might not by other means be obtained".

(22) The onus is on the applicant to show on a balance of probability that the court *a quo* has run into error which might result into a grave injustice. In *Dombodzvuku and Anor* v *Sithole N.O & Anor* 2004 (2) ZLR 242 MAKARAU J, as she then was, said,

> "While the statute granting the review power does not place any limitation on the exercise of that power, this court has in practice rarely exercised the power in relation to proceedings pending before the lower court. In practice, the court will withhold jurisdiction pending completion of the lower court's proceedings to make an orderly conduct of court proceedings in the lower court. It would create a chaotic situation if any irregularity or unfavourable ruling on an interlocutory matter were to be brought on review before the completion of the proceedings in the lower court. The court's aversion to disrupting the general continuing of proceedings in the lower court assumes ascending importance especially in cases where no actual or permanent prejudice will be occasioned by the applicants. The power is however exercised in all matters where, not to do so, may result in a miscarriage of justice."

(23) *In Masedza and Ors* v *Magistrate Rusape and Anor* 1998 (1) ZLR 36 in dealing with the review powers of the High Court over uncompleted proceedings of the magistrate court, the court laid down three circumstances under which the court may interfer, these being that:

> (i) If the interlocutory decision results in an irregularity which is gross

(ii) If the decision sought to be impugned will seriously prejudice the rights of the litigant or

(iii) The irregularity is such that justice might not by any means be attained.

(24) A look at case law shows that a general principle has been established. The general rule is that the court should be slow to interfere in unterminated or uncompleted proceedings before the inferior courts. The exception to the general rule is that the court will intervene in rare situations where grave injustice will result.

(25) The court in the Prosecutor *General of Zimbabwe v Intratrek Zimbabwe (Pvt) Ltd & Ors* SC59/19 noted that the principles governing interference by a superior court with the ongoing proceedings of a subordinate court are well established. It also took note of the fact that the High Court should only interfere where actual and permanent prejudice will be occasioned to the accused. The court held that:

> "In South Africa, the position was aptly enunciated in *Walhaus & Ors* v *Additional Magistrate, Johannesburg & Anor* 1959 (3) SA 113 (AD). In the present context, it is instructive to cite in extenso the relevant passages from that judgment, at 119D-120E, per Ogilvie THOMPSON JA:
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> "If, as appellants contend, the magistrate erred in dismissing their exception and objection to the charge, his error was that, in the performance of his statutory functions, he gave a wrong decision. The normal remedy against a wrong decision of that kind is to appeal after conviction. The practical effect of entertaining applicant's position would be to bring the magistrate's decision under appeal at the present, unconcluded, stage of the criminal proceedings against them in the magistrate's court. No statutory provision exists directly sanctioning such a course. ... .It is true that, by virtue of its inherent power to restrain illegalities in inferior courts, the Supreme Court may, in a proper case, grant relief – by way of review, interdict or mandamus – against the decision of a magistrate's court given before conviction. ... . This, however, is a power which is to be sparingly exercised. It is impracticable to attempt any precise definition of the ambit of this power; for each case must depend upon its own circumstances.

The court in *Intratrek Zimbabwe supra* further noted that the learned authors of Gardiner and Lansdown (6th ed., vol. I p. 750) state:

> " While a superior court on review or appeal will be slow to exercise any power, whether by mandamus or otherwise, upon the unterminated course of proceedings in a court below, it certainly has the power to do so, and will do so in rare cases where grave injustice might otherwise result or justice might not by other means be attained. ... . In general, however, it will hesitate to intervene, especially having regard to the effect of such a procedure upon the continuity of proceedings in the court below, and to the fact that redress by means of review or appeal would ordinarily be available."

(26) Section 167A of the CPEA provides for action that the court will take when a trial is delayed. It provides:

> "167**A Unreasonable delay in bringing accused to trial**
>
> (1) A court before which criminal proceedings are pending shall investigate any delay in the completion of the proceedings which appears to the court to be unreasonable and which could cause substantial prejudice to the prosecution, to the accused or his or her legal representative, to a witness or other person concerned in the proceedings, or to the public interest.
>
> (2) In considering whether any delay is unreasonable for the purposes of subsection (1), the court shall consider all the circumstances of the case and in particular the following—
>
> (a) the extent of the delay;
>
> (b) the reasons advanced for the delay;
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> (c) whether any person can be blamed for the delay;
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> (d) whether the accused has raised such objections to the delay as he or she might reasonably have been expected to have raised;
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> (e) the seriousness, extent or complexity of the charge or charges;
>
> (f) any actual or potential prejudice which the delay may have caused to the State, to the accused or his or her legal representative or to any other person concerned in the proceedings;
>
> (g) the effect of the delay on the administration of justice;
>
> (h) the adverse effect on the interests of the public or the victims in the event of the prosecution being stopped or discontinued.
>
> (3) If after an investigation in terms of subsection (1) the court finds that—
>
> (a) the completion of the proceedings is being unduly delayed; or
>
> (b) there has been an unreasonable delay in bringing the accused to trial or in completing the trial; the court may issue such order as it considers appropriate in order to eliminate the delay and any prejudice arising from it or to prevent further delay or prejudice, including an order—
>
> (i) refusing further postponement of the proceedings;

(ii) granting a postponement subject to such conditions as the court may determine;

(iii) that the prosecution of the accused for the offence be permanently stayed;

(iv) that the matter be referred to the appropriate authority for an administrative investigation and possible disciplinary action against any person responsible for the delay."

ANALYSIS

(27) The applicant raised 5 grounds for review although the argument has mainly concentrated on one, the failure by the court to do an investigation as mandated by section 167A of the CP&E Act. The other grounds remain cosmetically attached to the main ground. Nevertheless, I will analyse all the grounds raised by the applicant.

(28) The first 4 grounds are all centred on alleged gross irregularity by the court:

a) in its failure to investigate.

b) in making a finding that only unreasonable delays "mainly or solely attributable to the State" can properly found an application for permanent stay of prosecution.

c) the court limited the delays to the period post commencement of trial.

d) blamed the applicant for the delays.

(29) The last ground though it says the decision of the court is outrageous in its defiance of logic or accepted legal principles still converges to the issue of failure to investigate.

Need to Investigate

(30) It is an interpretation issue of the phrase "shall investigate" in section 167A of the CP&E Act which has given rise to this review application. The applicant alleges that the 1st respondent committed a gross irregularity in deciding the application for permanent stay of prosecution without conducting the mandatory investigation required in terms of s167A of the CPEA. Section 27 of the High Court Act confers the High Court with the requisite power to interfere with the decision of the Magistrate's court where there has been gross irregularity in the decision of the court or proceedings.

(31) The word "shall" is peremptory is something which cannot be disputed. The word "investigate" has not been defined in the Act. What then is the understanding of the parties of the word "investigate?"

(32) Mr Sitotombe for the applicant said the dictionary meaning of the word is, "to inquire into a matter". He also relied on the case of Manyara v The State CCZ3/15 which was a

referral to the Constitutional Court from the Magistrate's court. It must be noted the Court was not dealing with the word "investigate" as per section 167A. No direct authority to this section was availed by either party. I asked Mr Sitotombe at the hearing if there were any rules dealing with the procedure of investigation. He could not avail any apart from reference to a similar matter pending before Kwenda J where an inquiry was admittedly to be conducted. In search of an answer, in an effort to persuade the court, he referred to a South African case of The State v Boniface Ndibe, Review Case No. 14/544/2010 Hibh Court Ref. No. 11140 Magistrate's Serial No. 27/2010. Review Case No. 14/544/2010 High Court Ref. No. 11140 Magistrate's Serial No.27/2010.

(33) In that case the court was dealing with section 342 (1) similar to our section 167A. The court said while section 342 (1) enjoins a court before which criminal proceedings are pending to 'investigate' the cause of delay, such investigation should take the form of an enquiry but not necessarily a formal inquiry as long as the enquiry takes into account factors in section 342 (2) which are the same factors laid down in our section 167A (2).

(34) A formal enquiry, in my view, will include the leading of viva voce evidence as opposed to an informal inquiry where the court considers what the record presents itself.

(35) According to the Oxford Learner's Dictionary, 'investigate' is a verb meaning to carefully examine the facts of a situation, event, or crime to discover the truth, or to research a subject thoroughly. It is used both transitively (investigate something/somebody) and intransitively, often relating to police, official, or scientific inquiries.

(36) According to the Cambridge Dictionary, to investigate is to carefully examine a crime, problem, statement, or situation, especially to discover the truth. It is a verb (Intransitive or Transitive) often used in contexts of official inquiries, police work, or scientific research, with the primary goal of finding all the fact.

(37) The purpose of investigation is to get the truth of the matter. In casu, the purpose of investigation is to examine and see if there has been an unreasonable delay. What form should an investigation take? A formal or informal inquiry? Whatever form it takes, what is critical though is whether the court is able to achieve the factors laid down in section 167A (2). There is nothing wrong, where the court feels factors in section 167A (2) cannot be realized without viva voce evidence, to call for such evidence. Where an informal

inquiry achieves the desired purpose, the court can proceed to consider the application as presented on paper. The remand history of the matter is already part of the record. If all facts are apparent from the record, there is no need to do a formal inquiry calling viva voce evidence as opposed to an informal inquiry.

(38) The suggestion by Mr Sitotombe that the parties ought to have engaged at a case management conference and agree as to the scope of the investigation is not founded in law.

(39) I am not persuaded that the court *a quo* failed to investigate before a ruling was made. The first ground for review is dismissed.

Who is to blame for the delay.

(40) A ground attacking the finding of the court as to who is to blame is more of an appealable decision more than it is for review. Even if it is raised as a ground for review it carries no merit. The onus in an application for permanent stay of prosecution rests with the applicant though on a balance of probabilities. A finding on a factual position as to where fault lies is within the discretion of the court unless if the discretion was unreasonably exercised, then an appeal ought to have been noted. The ground has no merit and must be dismissed.

Only delays after commencement of trial considered.

(41) A reading of the ruling by the Magistrate is clear in that the issue of delay the decision of the court is outrageous in its defiance of logic was considered pre and post trial. The matter speaks for itself by reading the ruling. The ground has no merit and must be dismissed.

The decision of the court being outrageous in its defiance of logic.

The doctrine of irrationality is applicable in a decision which is so outrageous in its defiance of either logic, or morals, that no sensible person could have arrived at that conclusion on proper application of his mind. Whether or not a decision falls within the ambit of this category is subjective, and depends on the interpretation of the individual. Apart from the alleged failure to investigate, nothing else was presented by the applicant in support of this ground.

Moreover, from the authorities cited above, superior courts should only interfere where actual or permanent prejudice will be occasioned to the accused. The court should also

interfere in limited circumstances. The applicant has not shown that the proceedings were in any way grossly irregular. The trial could not proceed in the court a *quo* mainly at the instance of the applicant who required medical treatment.

The application for review is bound to fail.

DISPOSITION

1. The preliminary point of peremption raised by the applicant be and is hereby dismissed.

2. The application for review be and is hereby dismissed.

3. There is no order as to costs.

MANZUNZU J:……

Mtetwa & Nyambirai, applicants' legal practitioner.

National Prosecuting Authority, for the respondents.